

Department 16 no later than one (1) year from the date of entry of this order. Counsel shall contact the Departmental Clerk to request a hearing date.

11. The Court will consider at the Final Approval Hearing: (a) whether to grant final approval of the Settlement; (b) any objections thereto; (c) the application for attorneys' fees and costs; and (d) the applications for service payments to the Named Plaintiffs.

12. The Settlement Administrator is authorized to administer the Settlement in accordance with the terms of the Settlement Agreement, including: (a) processing and verifying claims; (b) calculating pro rata distributions; (c) maintaining the Qualified Settlement Fund; and (d) distributing funds to eligible Settlement Class Members.

13. The Settlement Administrator shall file with the Court and serve on Class Counsel and Defendants' Counsel periodic reports regarding the claims process, including the number of claims received, approved, and denied.

14. Settlement Class Members who wish to exclude themselves from the Settlement must submit a written request for exclusion postmarked no later than 45 days from the date of mailing of the notice, or such other date as the Court may establish.

15. Settlement Class Members who wish to object to the Settlement must file their objections with the Court and serve them on Class Counsel and Defendants' Counsel no later than 30 days prior to the Final Approval Hearing, or such other date as the Court may establish.

16. If the Settlement is not finally approved, or if the Court's approval is reversed or vacated on appeal, this Order shall be vacated, the Settlement shall be null and void, and the parties shall resume litigation as if no settlement had been reached. The conditional class certification granted herein shall not be binding in any subsequent litigation.

17. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, attaching a copy of this ruling. Where there is a conflict in the provisions of the proposed order and this ruling, the terms of this ruling prevail.

18. No appearance is required at the hearing on September 16, 2026.

11. 9:00 AM CASE NUMBER: C24-00068

CASE NAME: JOSHUA LOPEZ VS. VEOLIA NORTH AMERICA, LLC., A DELAWARE LIMITED LIABILITY COMPANY

***HEARING ON MOTION IN RE: FINAL APPROVAL HEARING (SET BY THE COURTROOM)**

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Joshua Lopez, on behalf of himself and those similarly situated ("Plaintiff") Motion for Final Approval of the Class Action and PAGA Settlement against Defendant Veolia North America LLC ("Defendant") is approved pursuant to the ruling herein.

Background

This wage and hour class action and Private Attorneys General Act ("PAGA") representative action was commenced by Plaintiff Joshua J. Lopez on January 9, 2024, against Defendants Veolia North America, LLC and related entities (collectively "Veolia"). The operative complaint alleged twelve causes of action, including failure to pay minimum wages and overtime, meal and rest period violations, inaccurate wage statements, failure to provide records, and unfair business practices under Business and Professions Code section 17200. Plaintiff also filed a PAGA notice with the Labor and Workforce Development Agency ("LWDA") on January 9, 2024.

The Class Period covers January 9, 2020, through April 30, 2025, and encompasses all non-exempt, hourly employees who worked at seventeen specified municipal water sites across California. The PAGA Period covers January 9, 2023, through April 30, 2025. Prior to mediation, the parties engaged in informal discovery, including production of a class list and a 25% sampling of timekeeping and payroll records. Plaintiff retained Berger Consulting Group to prepare damage calculations and exposure analyses.

On February 19, 2025, the parties participated in a full-day mediation with Lonnie Giamela, Esq., resulting in a settlement reached through the mediator's proposal. The Gross Settlement Amount is \$1,305,000.00, allocated as follows:

- \$435,000.00 (33.3%) in attorneys' fees to Class Counsel;
- \$16,105.91 in litigation costs;
- \$8,500.00 in administration costs to Apex Class Action Administrators;
- \$10,000.00 service award to Plaintiff Lopez; and
- \$75,000.00 in PAGA penalties (with \$56,250.00 payable to LWDA and \$18,750.00 to Aggrieved Employees). The Net Settlement Amount of approximately \$760,394.09 will be distributed to Participating Class Members on a claims-made basis without reversion to Defendants.

The settlement provides for automatic *pro rata* distributions to the 225 Aggrieved Employees for the PAGA portion, with individual PAGA payments estimated between \$2.44 and \$148.83 (average \$87.29). Class Members cannot opt out of the PAGA settlement. For the class portion, individual payments are estimated between \$25.93 and \$7,180.28 (average \$2,706.99), allocated 20% to wages (W-2) and 80% to settlement interest and penalties (1099). The settlement is an opt-out class with no claim form requirement.

On May 6, 2026, the Court granted preliminary approval, appointed Plaintiff as Class Representative and D.Law as Class Counsel, approved Apex as Administrator, and established notice procedures. On July 10, 2026, Apex mailed class notices to 307 Class Members via first-class mail after NCOA processing. The response deadline was September 8, 2026, extended to September 22, 2026 for remailed notices. To date, there has been only one request for exclusion (Thomas Garcia) and zero objections. Class Counsel has worked approximately 118.6 attorney hours with a lodestar of \$156,989.00 (or \$166,709.90 including litigation support), yielding a multiplier of 2.6-2.8 on the requested \$435,000.00 fee award. The settlement releases all claims alleged in the operative complaint, and the parties have submitted the required PAGA notification to LWDA under Labor Code section 2699(l)(2).

Analysis

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)]

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

The settlement contains release language covering all claims and causes of action, alleged or which could have reasonably been alleged based on the allegations in the operative pleading, including a number of specified claims. Under recent appellate authority, the limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 (“A court cannot release claims that are outside the scope of the allegations of the complaint.”) “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees \$435,000.00 relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Litigation costs of \$16,105.91 are reasonable and are approved. Settlement administration costs of

\$8,500.00 are reasonable and are approved. The requested representative payment of \$10,000 for Plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

The Court having considered Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement and Request for Attorneys' Fees, Costs, and Class Representative's Enhancement Award; the Memorandum of Points and Authorities; the Declaration of Marta Manus and exhibits thereto; the Declaration of Elizabeth Botero Bravo for Apex Class Action Administrators; the Declaration of Class Representative Joshua J. Lopez; all papers on file; and the proceedings had at the Final Approval Hearing on September 16, 2026; and good cause appearing therefor, the Court finds and orders as follows:

CONCLUSION

I. JURISDICTION AND VENUE

1. The Court has jurisdiction over this matter pursuant to Article VI of the California Constitution, Code of Civil Procedure section 382, and the California Rules of Court.
2. Venue is proper in Contra Costa County.

II. CLASS CERTIFICATION

1. The Court makes final its prior conditional certification of the following Class pursuant to Code of Civil Procedure section 382 and California Rule of Court 3.769: **Class Definition:** All non-exempt, hourly employees who worked for Defendants in California at the Settling Locations (the seventeen municipal water sites located in Arvin, Burlingame, Ontario (2), Discovery Bay, East Palo Alto, Fillmore, Hollister, Lathrop, Palm Springs, Richmond, Rio Vista, Santa Paula, Banning, Burbank, Jurupa Valley, and El Segundo) during the Class Period (January 9, 2020, through April 30, 2025).
2. The Court certifies the following Aggrieved Employee group for PAGA purposes pursuant to Labor Code section 2699: **"Aggrieved Employees:** All non-exempt, hourly employees who worked for Defendants in California at the Settling Locations during the PAGA Period (January 9, 2023, through April 30, 2025)".
3. The Court finds that the Class and Aggrieved Employee group satisfy the requirements of Code of Civil Procedure section 382 and Labor Code section 2699: (a) the Class is sufficiently numerous (307 members); (b) common questions of law and fact predominate; (c) the claims of the Class Representative are typical; and (d) the Class Representative and Class Counsel will adequately represent the interests of the Class and Aggrieved Employees.

III. NOTICE AND OPT-OUT PROCEDURE

1. The Court finds that the notice program approved at the preliminary approval stage was fully implemented. Apex Class Action Administrators mailed Class Notices via first-class U.S. Mail on July 10, 2026, to 307 Class Members at their last known addresses after NCOA processing.
2. The Court finds that the Class Notice: (a) fairly and adequately described the Settlement; (b) informed Class Members of their right to opt out, object, or dispute workweeks; (c) provided

applicable deadlines; (d) advised of the Final Approval Hearing date; and (e) complied with due process and California Rule of Court 3.769.

3. The Court notes that only one Class Member (Thomas Garcia) submitted a timely request for exclusion, and zero objections were received. This represents a 99.7% participation rate.

IV. FINAL APPROVAL OF SETTLEMENT

1. The Court **grants** final approval to the Class Action and PAGA Settlement Agreement and Addendum (the "Settlement Agreement"), attached as Exhibit 1 to the Manus Declaration, finding it fair, reasonable, and adequate under Code of Civil Procedure section 382 and California Rule of Court 3.769.
2. The Court finds that the Settlement was reached through arm's-length negotiations with the assistance of an experienced mediator, Lonnie Giamela, Esq., after meaningful discovery including a 25% sample of timekeeping and payroll records and expert damage calculations.
3. The Court finds that the \$1,305,000.00 Gross Settlement Amount, with \$760,394.09 Net Settlement Amount to be distributed to Participating Class Members, represents a fair compromise considering: (a) the risks of continued litigation; (b) Defendants' affirmative defenses; (c) the uncertainty of class certification; (d) the complexity of wage and hour claims; and (e) the substantial benefits to be provided to Class Members without the need for individual claims forms or reversion of unclaimed funds to Defendants.
4. The Court finds that the Settlement is in the best interests of the Class and Aggrieved Employees and approves the release of all claims alleged in the Operative Complaint.

V. ATTORNEYS' FEES AND COSTS

1. The Court awards Class Counsel attorneys' fees in the amount of \$435,000.00, representing 33.3% of the Gross Settlement Amount. The Court finds this percentage fair and reasonable under the common fund doctrine, as established in *Laffitte v. Robert Half International Inc.* (2016) 1 Cal.5th 480 and *Serrano v. Priest* (1977) 20 Cal.3d 25.
2. The Court finds that the lodestar cross-check supports this award: Class Counsel worked 118.6 attorney hours with a lodestar of \$156,989.00 (or \$166,709.90 including litigation support), yielding a multiplier of 2.6-2.8, which falls within the accepted range of 1.0 to 4.0 for common fund cases.
3. The Court finds that Class Counsel's hourly rates (\$1,687 for Alvin B. Lindsay, \$1,350 for Enoch J. Kim, \$1,227 for Marta Manus, \$1,325 for Rose Sorial, and \$1,019 for Tania Fonseca) are reasonable and commensurate with prevailing rates for attorneys of comparable experience in complex wage and hour litigation.
4. The Court awards Class Counsel litigation costs in the amount of \$16,105.91, which is below the \$30,000.00 cap specified in the Settlement Agreement and represents reasonable expenses for mediator fees, expert fees, and filing costs.

VI. ADMINISTRATION COSTS AND SERVICE AWARD

1. The Court approves administration costs of \$8,500.00 to Apex Class Action Administrators for settlement administration services.
2. The Court approves a Class Representative service award of \$10,000.00 to Plaintiff Joshua J.

Lopez, finding it fair and reasonable compensation for his time (approximately 65 hours), risk, and contribution to the litigation, consistent with *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785.

VII. PAGA SETTLEMENT APPROVAL

1. The Court grants final approval to the PAGA portion of the Settlement pursuant to Labor Code section 2699(l)(2), finding it fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations and deter future violations, consistent with *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56 and *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521.
2. The Court approves the allocation of \$75,000.00 in PAGA penalties, with \$56,250.00 (75%) payable to the LWDA and \$18,750.00 (25%) payable to the 225 Aggrieved Employees on a pro rata basis.

VIII. DISTRIBUTION AND IMPLEMENTATION

1. The Settlement Administrator is directed to distribute funds to Participating Class Members within 30 days of this Order, with checks valid for 180 days. For current employees whose checks are returned undeliverable, the Administrator shall arrange delivery through Defendants' payroll.
2. Any uncashed checks shall be handled in accordance with the Settlement Agreement. Unclaimed funds shall not revert to Defendants.

IX. JUDGMENT AND RELEASE

1. Judgment is entered in accordance with this Order. Upon entry of this Order, all Participating Class Members and Aggrieved Employees are bound by the releases set forth in the Settlement Agreement.
2. The Court retains jurisdiction over this action for purposes of enforcing the Settlement Agreement, supervising distribution, and resolving any disputes arising from the implementation of this Order.

X. MISCELLANEOUS

1. Class Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
2. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of entry of this order, and is ordered to submit a compliance statement preferably in the form of a declaration of distributions by the Administrator at least ten (10) court days before the compliance hearing date.
3. The Administrator is ordered to withhold 5% of the attorney's fees pending satisfactory compliance as found by the Court at or before the compliance hearing.